Samuel A. Alito, Jr.

Associate justice Samuel A. Alito, Jr., 2007.

Samuel A. Alito, Jr. (born April 1, 1950, Trenton, New Jersey, U.S.) is an associate justice of the Supreme Court of the United States from 2006. Alito is known for his judicial conservatism and his many famous Supreme Court opinions, including *McDonald* v. *City of Chicago* (2010), which held that state and local laws restricting the right to bear arms violate the Second Amendment, and *Dobbs* v. *Jackson Women's Health Organization* (2023), which overturned the Court's earlier recognition of a constitutional right to abortion in *Roe* v. *Wade* (1973).

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Education and early career

Alito's father, Samuel A. Alito, immigrated to the United States from Italy as a child and eventually served as director of research for the New Jersey legislature. His mother, Rose F. Fradusco Alito, was an elementary school teacher and principal. Alito graduated from Steinert High School in Hamilton Township, New Jersey. He then earned an A.B. degree in history and political science from Princeton University in 1972, graduating with a military commission (as a second lieutenant) in the U.S. Army Reserve. He served on active duty for three months and on inactive duty until 1980, when he was discharged as a captain. Alito attended Yale Law School, where he edited the *Yale Law Journal* before graduating with a J.D. degree in 1975.

Alito's legal career consisted almost entirely of service to the judicial and executive branches of the federal government. After earning his law degree, he worked for a law firm in Trenton, New Jersey, and then as a clerk for Judge Leonard I. Garth of the U.S. Court of Appeals for the Third Circuit. From 1977 to 1981 he served as

assistant U.S. attorney for the district of New Jersey. He then moved to Washington, D.C., where he joined the Ronald Reagan administration as assistant to the solicitor general (1981–85) and as deputy assistant attorney general (1985–87) before returning to New Jersey to serve as U.S. attorney for the district of New Jersey (1987–90). In 1990 Alito was nominated to the Third Circuit Court of Appeals by Pres. George H.W. Bush and unanimously confirmed by the U.S. Senate. Alito sat as a judge on the Third Circuit for the following 15 years.

Nomination to the Supreme Court

In 2005 Alito was nominated by Pres. George W. Bush to replace the associate Supreme Court justice Sandra Day O'Connor, who planned to retire in 2006. Alito was the third nominee for the post, after John Roberts (whose nomination had been withdrawn and resubmitted to fill the role of chief justice upon the death in September 2005 of Chief Justice William Rehnquist) and Harriet Miers (whose nomination was opposed by conservative members of Bush's own Republican Party). Because more-liberal members of Congress and others valued Justice O'Connor's role as a moderate "swing vote" on the Supreme Court, they worried that Alito, if confirmed, would push the Court's jurisprudence too far in a conservative direction. During Senate hearings on his nomination, Alito was praised for his intelligence, temperament, and character, being described by senators as "even-tempered," "fair-minded," and "honest." Skeptics and opponents, however, expressed concern that Alito's opinions would serve to limit the rights of the criminally accused, harm historically disadvantaged groups such as women and minorities, and unduly accommodate executive power.

Samuel A. Alito, Jr.: swearing-in

Samuel A. Alito, Jr. (center), being sworn in as an associate justice of the Supreme Court by Chief Justice John Roberts (right foreground) as Pres.

The hearings sparked a vigorous debate about the scope of the Senate's constitutional duty to provide "Advice and Consent" to the president in his appointment of Supreme Court justices. In Alito's case, the Senate's Republican majority argued that primary consideration should be given to the nominee's professional qualifications, while the Democratic minority asserted that the nominee's political ideology

George W. Bush (left) looks on, February 1, 2006.

also should be taken into account. Ultimately, a group of Democratic senators—including former and future presidential candidates Hillary Clinton, John Kerry, and Barack Obama—supported a filibuster of Alito's appointment, citing his likely conservative rulings. But the Republican Senate leadership easily amassed the 60 votes needed for cloture, and on January 31, 2006, Alito was confirmed by a vote of 58 to 42. The vote was largely along party lines: only four Democrats voted in favor of confirmation, and only one Republican voted against.

Majority opinions joined by Alito

As expected, once on the Supreme Court, Alito became a reliable conservative. He tended to vote in agreement with Republican-appointed justices much more often than with Democratic-appointed justices. Thus, he joined conservative majorities in *Gonzales* v. *Carhart* (2007), which upheld the federal Partial-Birth Abortion Ban Act of 2003; *District of Columbia* v. *Heller* (2008), which established that the Second Amendment protects an individual right to possess firearms; *Shelby County* v. *Holder* (2013), which struck down a key provision of the Voting Rights Act of 1965; and *Citizens United* v. *Federal Election Commission* (2010), which limited the ability of Congress to regulate political expenditures by corporations and unions. The last case led to an unusual incident in presidential-court relations. While attending President Barack Obama's 2010 State of the Union Address before Congress, Alito apparently responded to Obama's criticism of the ruling by wincing, shaking his head, and mouthing the words *not true*.

In 2010 Alito joined a famous conservative decision in *Berghuis* v. *Thompkins*, in which the Court ruled that criminal defendants waive their right to remain silent—as established by the Court in *Miranda* v. *Arizona* (1966)—unless they "unambiguously" invoke that right prior to or during police interrogation. If they do not explicitly announce that they wish to exercise that right, the police may continue to interrogate them, and their voluntary statements can be used against them in court. And in 2024 Alito joined a conservative majority in a landmark decision, *Trump* v. *United States*, which granted presidents "absolute immunity" from prosecution for acts involving their "core constitutional powers" and "presumptive immunity" for all other official acts.

Majority opinions written by Alito

Alito wrote majority opinions in some prominent cases that split the Supreme Court along ideological lines. In *Ledbetter* v. *Goodyear Tire & Rubber Co.* (2007), he argued that statutes of limitation apply to wage-discrimination claims even when the victim was unaware of the discrimination until after the period for bringing a claim had elapsed. In *McDonald* v. *City of Chicago* (2010), he extended the *Heller* court's Second Amendment analysis to state and local governments.

In 2014 the Supreme Court announced two controversial conservative decisions written by Alito: *Burwell* v. *Hobby Lobby Stores, Inc.* recognized a right of closely held private corporations to obtain, on the grounds of religious liberty, exemptions from generally applicable laws, and *Harris* v. *Quinn* declined to extend (and in fact severely criticized) a series of labor cases, ruling that certain workers paid by the state could not be required to pay union fees. In *Glossip* v. *Gross* (2015), Alito upheld Oklahoma's use of the sedative midazolam in lethal injections, placing the burden of proof on the plaintiffs (a group of condemned prisoners) to show that the state's method of execution presented a substantial risk of severe pain and that alternative methods of capital punishment were available. In *Janus* v. *American Federation of State, County, and Municipal Employees* (2018), Alito overruled the Court's earlier decision in *Abood* v. *Detroit Board of Education* (1977), holding that First Amendment free-speech protections prohibit laws that permit public-sector unions to collect fees from non-consenting nonunion employees who are covered by collective bargaining agreements negotiated by the unions. The *Janus* decision was seen as a major defeat for unions (which, in turn, have been seen as an important source of financial and political support for Democrats in the U.S. political system). In *Brnovich* v. *Democratic National Committee* (2021), Alito ruled that restrictive state voting laws that disproportionately burden members of racial minority groups do not necessarily violate the Voting Rights Act, despite that law's prohibition of any voting "standard, practice, or procedure...which results in a denial or abridgement of the right of any citizen of the United States to vote on account of race or color" (Section 2).

In 2022 an apparent draft of a majority opinion in *Dobbs* v. *Jackson Women's Health Organization*, written by Alito, was leaked to a news publication in an

extraordinary breach of protocol regarding the Court's normally confidential deliberations. The draft, which was soon declared to be authentic by Chief Justice Roberts, indicated that a majority of justices had voted to overturn two historic Supreme Court rulings that had established and affirmed the constitutional right to obtain an abortion, *Roe* v. *Wade* (1973) and *Planned Parenthood of Southeastern Pennsylvania* v. *Casey* (1992). As expected, in the Court's official decision in *Dobbs*, issued in 2022, Alito held that there is no constitutional right to abortion and that "*Roe* and *Casey* must be overruled." And in *Sackett* v. *Environmental Protection Agency* (2023), Alito's majority opinion ruled that a wetland is subject to regulation under the Clean Water Act (1972) only if there is "continuous surface connection" between it and a body of water (such as oceans, rivers, streams, or lakes) to which the act applies. Thus, if a wetland is merely close to ditches or other small paths of water that eventually leak into a qualified body of water (as was the case in the situation under review) it is not subject to the EPA's regulatory authority.

Dissenting opinions joined by Alito

Alito also joined minority conservative voting blocs in a number of cases. The many dissenting opinions joined by Alito included a defense of the Bush administration's use of military commissions to try prisoners at the Guantánamo Bay detention camp in Cuba (*Hamdan* v. *Rumsfeld* [2006]); a challenge to the constitutionality and interpretation of Obama's 2010 Affordable Care Act (*National Federation of Independent Business* v. *Sebelius* [2012] and *King* v. *Burwell* [2015]); a contention that the Constitution does not require states to make marriage available to same-sex couples (*Obergefell* v. *Hodges* [2015]); an argument to the effect that the University of Texas had not demonstrated that its use of race as a factor in admissions decisions was narrowly tailored to serve a compelling governmental interest (*Fisher* v. *University of Texas at Austin* [2016]); and a finding that restrictions imposed on abortion providers in Texas did not unconstitutionally burden a woman's right to obtain an abortion (*Whole Woman's Health* v. *Hellerstedt* [2016]).

Dissenting opinions written by Alito

Among Alito's best-known opinions was his dissent in *Snyder* v. *Phelps* (2011). The case involved a claim of freedom of speech by members of Westboro Baptist Church, who had protested near the funeral of Matthew Snyder, a U.S. Marine, and subsequently were held liable for damages for intentionally inflicting emotional injury on his family. Eight of the justices, including Scalia, found that the church members' protests, however "outrageous," were protected by the First Amendment. Alito was the lone dissenter. As one of only three sitting justices who had served in the military (the others were Anthony Kennedy and Stephen Breyer), Alito argued that parts of the protests were directed at a private person and involved matters of private concern and that tortuous speech is not protected by the First Amendment merely because it occurs in a public space or includes some discussion of public issues. "In order to have a society in which public issues can be openly and vigorously debated," Alito wrote, "it is not necessary to allow the brutalization of innocent victims." He similarly argued for limits to free-speech protections in *United States* v. *Stevens* (2010), in which, again as sole dissenter, he argued in support of the constitutionality of a federal statute criminalizing the production and sale of animal-cruelty videos, because, he wrote, the statute was intended to prevent animal cruelty, not to suppress speech.

Alito's jurisprudence and concern for religious liberty

Alito's consistent conservatism led some Supreme Court watchers to dub him "Scalito"—a suggestion that he was an acolyte of his fellow conservative associate justice Antonin Scalia (1936–2016). Although Alito very rarely sided with liberal justices against conservative justices, his opinions nevertheless revealed a distinct brand of conservative jurisprudence. In contrast to Scalia, Alito evinced some skepticism of originalism, the practice of resolving textual ambiguity by relying on the common meanings of the terms in which a legal provision was written at the time of its adoption. Likewise, he demonstrated a willingness to examine legislative history in determining the meaning of ambiguous statutes, a practice that was anathema to Scalia. Alito described himself as more pragmatic than some of his conservative colleagues, a characteristic that he attributed to the fact that he had spent less time than they in the legal academy. He was also regarded as less

friendly to criminal defendants than most other judges, a disposition that may have stemmed from his experiences as a prosecutor.

Alito's jurisprudence was also affected by his interest in religious liberty. In public speeches Alito, a lifelong Roman Catholic, expressed concern that religious liberty in the United States was declining under recent laws and court rulings. His interests were thus reflected in his judicial opinions, as in the *Hobby Lobby* case. Similarly, writing in dissent in *Obergefell*, Alito worried about the consequences of the majority's finding of a constitutional right to same-sex marriage for the free expression of traditional religious beliefs and values. "I assume that those who cling to old beliefs will be able to whisper their thoughts in the recesses of their homes," he wrote, "but if they repeat those views in public, they will risk being labeled as bigots and treated as such by governments, employers, and schools." Alito also joined a concurring opinion in *Masterpiece Cakeshop, Ltd.* v. *Colorado Civil Rights Commission* (2018), in which the Court's conservative majority held that a Colorado civil rights agency had acted unfairly in its finding that a baker's refusal on religious grounds to make a wedding cake for a same-sex couple had violated the state's antidiscrimination law.

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